NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT – I)

Item No. 101

IA(CA) No. 12/2025
And
CP(CAA) No. 33/Chd/Hry/2025
(2nd Motion)

IN THE MATTER OF:

Reciq Enterprises Pvt. Ltd. ....Transferor Company

And

SI Interpack Pvt. Ltd. .....Transferee Company

Under Sections: 230-232, CA 2013, Rule 11 of NCLT Rules, 2016

Order delivered on 08.05.2026

CORAM:

SHRI. SHISHIR AGARWAL
HON'BLE MEMBER (T)

SHRI. K. BISWAL,
HON'BLE MEMBER (J)

PRESENT:-

For the Petitioner	:	Ms. Karuna Sharma, Advocate Ms. Prerna Tiwari, Advocate
For the Income Tax Department	:	Mr. Varun Issar, Senior Standing Counsel
For the OL	:	Mr. Edward Augustine George, Advocate
For the RD/ROC Chandigarh	:	Dr. Kishorkumar Devarwade, Assistant Director

ORDER

CP(CAA) No. 33/Chd/Hry/2025 & IA(CA) No. 12/2025

1. Dr. Kishorkumar Devarwade, Assistant Director attends and states that there is no objection to the Department with respect to the scheme and the amendments proposed.

2. Mr. Varun Issar, Ld. Senior Counsel for the Income Tax Department attends and states that department has no objections with respect to the proposed Scheme of Amalgamation.
3. Ld Counsel for the Applicant companies have sought amendment to the proposed Scheme of Amalgamation to the following extent:

    (i) Change in accounting treatment from Ind AS Accounting Standards to other applicable accounting principles; and

    (ii) Modification of the Appointed Date to be read as 31.03.2025, with the closing hours of the Appointed Date in place of the opening hours.
4. In view of the aforesaid amendments, Mr. Varun Issar, Sr. Standing Counsel for the Income Tax Department also states that Department has no objection to aforesaid amendments to the proposed scheme of amalgamation.
5. Ld. Counsel for the Petitioner Company attends and states that the Transferor Company and the Transferee Company shall abide by the relevant Income Tax provisions in this regard.
6. In view of the above, ***Order Reserved.***

Sd/-	**Sd/-**
(SHISHIR AGARWAL)	**(K. BISWAL)**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

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